

HEADNOTE

“1. The requirement in Art. 138(1)(e) of the European Patent Convention that a European patent may be revoked if the proprietor is not entitled under Art. 60(1) should be interpreted as meaning that the proprietor does not have any rights to the patent. The burden of presentation and proof for facts establishing that the proprietor is not entitled lies with the claimant. It is therefore not sufficient for this ground of revocation to be successful that a claimant demonstrates that it has rights to parts of the subject-matter disclosed in a patent, e.g. as a co-inventor or the co-inventor’s successor in title.

2. Dependent claims are part of the patent and may be used as fall-back positions in revocation actions. At least in a stand-alone revocation action, where no infringement claim has been brought and it is therefore not yet clear which claims a patent holder may decide to rely on for what purpose, a claimant therefore may have a legitimate interest in having the validity of dependent claims assessed, even if the independent claim is deemed valid. Although the Court is not generally required to take a decision regarding dependent claims in such a situation, it should at least have the discretion to do so if considered appropriate based on the circumstances of the case.”

COURT
Central Division in Munich

PATENT
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KEYWORDS

Entitlement

Dependent claims

PROCEEDINGS
Action for revocation

WIND TURBINE POWER
TRANSMISSION SYSTEM

Wayback machine

SUMMARY

The Central Division in Munich ruled on an action for revocation. The patent at issue relates to a wind turbine power transmission system. According to the headnotes of the decision, Article 138(1)(e) EPC permits revocation of a European patent where the proprietor is not entitled to it under Article 60(1), meaning the proprietor holds no rights to the patent at all, and the burden of presenting and proving the facts establishing non-entitlement lies with the claimant rather than the proprietor. Dependent claims remain part of the patent and may serve as fall-back positions in revocation proceedings, so that even in a stand-alone revocation action without a parallel infringement claim, a claimant may have a legitimate interest in having their validity assessed, and the Court retains discretion to rule on dependent claims where appropriate even if the independent claim is upheld.